

National Youth Council Act, 2015

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Amending Acts

1. Some Nepal Acts Amendment Act, 2072 2072.11.13
2. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act Number 3 of the Year 2072

An Act Made to Make Provisions Relating to the National Youth Council

Preamble: Whereas, it is expedient to make necessary provisions to protect and promote the rights and interests of youth, prepare capable citizens for building a prosperous nation, and empower youth and include them in the mainstream of national development by involving them according to need from policy-making to implementation level on youth-related matters,

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament pursuant to Article 83 of the Interim Constitution of Nepal, 2063, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "National Youth Council Act, 2072".
- (2) This Act shall commence on the ninety-first day following its certification.
2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Chairperson" means the Chairperson of the Council.
 - (b) "Vice-Chairperson" means the Vice-Chairperson of the Council.
 - (c) "District Youth Committee" means the District Youth Committee pursuant to Section 11.
 - (d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules or regulations made under this Act, as amended by the Some Nepal Acts Amendment Act, 2072.
 - (e) "Council" means the National Youth Council established pursuant to Section 3.
 - (f) "Ministry" means the Ministry of Youth and Sports.
 - (g) "Youth" means a person whose age is from sixteen years to forty years.
 - (h) "Youth of Special Community" means youth who are conflict-affected, at-risk, have disabilities, or belong to marginalized minority communities.
 - (i) "Member" means a member of the Council, and this term also includes the Chairperson, Vice-Chairperson,

and Member-Secretary of the Council.

(j) "Committee" means the Executive Committee pursuant to Section 8. Chapter-2

Establishment of the Council

3. Establishment of the Council: (1) A National Youth Council is established for, inter alia, the work of protecting and promoting the rights and interests of youth.

(2) The central office of the Council shall be located in the Kathmandu Valley.

(3) The Council may open its offices outside the Kathmandu Valley as required. 4. Council to be an Autonomous and Corporate Body: (1) The Council shall be an autonomous and corporate body with perpetual succession.

(2) The Council shall have its own separate seal for all its acts and business.

(3) The Council may acquire, use, sell, or otherwise dispose of movable and immovable property like an individual.

Provided that the Council must obtain compulsory approval from the Government of Nepal before selling or disposing of immovable property.

(4) The Council may sue and be sued in its own name like an individual.

(5) The Council may contract, exercise rights, and fulfill obligations under a contract like an individual.

Chapter-3

Constitution of the Council and its Functions, Duties and Powers

5. Constitution of the Council: (1) The Council shall be constituted as follows:-

(a) Minister of State for Youth and Sports - Chairperson

(b) Person appointed by the Government of Nepal - Vice-Chairperson

(c) Secretary, Ministry of Finance - Member

(d) Secretary, Ministry of Industry - Member

(e) Secretary, Ministry of Agricultural Development - Member

(f) Secretary, Ministry of Youth and Sports - Member

(g) Secretary, Ministry of Labour and Employment - Member

(h) Secretary, Ministry of Education - Member

(i) Secretary, Ministry of Health and Population - Member

(j) Secretary, Secretariat of the National Planning Commission - Member

(k) Four persons representing various associations and organizations related to youth - Member

(l) Fifteen persons from among youth who have made special contributions to the protection and promotion of youth rights and interests, representing Indigenous/Nationalities, Madhesi, Dalit, persons with disabilities, minority communities, or backward regions - Member

(m) Six persons representing the fields of industry, labor, agriculture, sports, science, technology and environment, literature, and arts - Member

(2) The members pursuant to clauses (k), (l), and (m) of sub-section (1) shall be nominated by the Ministry based on the principle of inclusivity, and while making such nomination, at least fifty percent representation of women shall be ensured.

(3) The senior-most employee of the Council shall act as the Member-Secretary of the Council.

(4) The term of office of nominated members shall be four years.

(5) Notwithstanding anything contained in sub-section (4), if the Council decides that a nominated member has failed to fulfill his/her official responsibilities, the Ministry may remove such member from the post at any time.

(6) Before removing nominated members pursuant to sub-section (5), they shall be given an opportunity to present their defense. 6.

Functions, Duties and Powers of the Council: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Council shall be as follows:- (a) Formulating long-term policies relating to youth and recommending them to the Government of Nepal, (b) Formulating and implementing youth-related plans and programs subject to the policies approved by the Government of Nepal, (c) Determining the conditions to be fulfilled by associations and organizations that seek affiliation with the Council, (d) Determining necessary policies for mobilizing youth as volunteers in the field of development, construction, and social service, (e) Encouraging youth to participate in nation-building and to move forward focused on national development, (f) Approving the annual plan, program, and budget of the Council, (g) Providing suggestions to the Government of Nepal on matters related to youth development, empowerment, and mainstreaming, (h) Determining the number of staff positions required for the Council, (i) Performing and causing to perform functions as prescribed. 7. Meeting and Decisions of the Council: (1) The meeting of the Council shall be held as required. Provided that the interval between two meetings shall generally not exceed three months. (2) The meeting of the Council shall be held on the date, time, and place specified by the Vice-Chairperson under the direction of the Chairperson. (3) The Member-Secretary of the Council shall give notice to the members, including the agenda for discussion in the meeting, at least forty-eight hours before the Council meeting. (4) If more than fifty percent of the total number of members currently holding office in the Council are present, the quorum for the Council meeting shall be deemed to have been fulfilled. (5) The meeting of the Council shall be chaired by the Chairperson and, in his/her absence, by the Vice-Chairperson. (6) The opinion of the majority shall prevail at the Council meeting, and in the case of a tie, the person chairing the meeting shall cast the deciding vote. (7) The decision of the Council meeting shall be certified and kept by the Vice-Chairperson. (8) If the Council deems necessary, it may invite any expert or office bearer related to the work of the Council to participate in the Council meeting as an observer. (9) Other procedures relating to the Council meeting shall be as determined by the Council itself. Chapter-4 Constitution of the Committee and its Functions, Duties and Powers 8.

Constitution of the Committee: (1) There shall be an Executive Committee to function as the executive body of the Council. (2) The Committee shall be constituted as follows:- (a) Vice-Chairperson - Chairperson (b) Joint Secretary overseeing youth programs of the Ministry, designated by the Ministry - Member (c) Four members nominated by the Council from among Council members, including at least two women - Member (d) Senior-most employee of the Council - Member-Secretary (3) The term of office of the member pursuant to clause (c) of sub-section (2) shall be for the duration of their existence as members of the Council. 9. Meeting and Decisions of the Committee: (1) The meeting of the Committee shall be held as required. (2) The meeting of the Committee shall be held on the date, time, and place specified by the Vice-Chairperson. (3) Notwithstanding anything contained in sub-section (2), in the absence of the Vice-Chairperson, the Member-Secretary may convene a meeting of the Committee on the date, time, and place specified after consulting with the Committee members. (4) The Member-Secretary shall give notice to the Committee

members, including the agenda for discussion in the meeting, at least twenty-four hours before the Committee meeting. (5) If more than fifty percent of the total number of members of the Committee are present, the quorum for the Committee meeting shall be deemed to have been fulfilled. (6) The meeting of the Committee shall be chaired by the Chairperson of the Committee and, in his/her absence, by a member chosen from among themselves by the Committee members. (7) The opinion of the majority shall prevail at the Committee meeting, and in the case of a tie, the person chairing the meeting shall cast the deciding vote. (8) The decision of the Committee meeting shall be certified and kept by the person chairing the meeting. (9) If the Committee deems necessary, it may invite any expert or office bearer related to the work of the Committee to participate in the Committee meeting as an observer. (10) Other procedures relating to the Committee meeting shall be as determined by the Committee itself. 10.

Functions, Duties and Powers of the Committee: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Committee shall be as follows:- (a) Formulating the annual plan, program, and budget of the Council and presenting them before the Council for approval, (b) Determining the conditions, method, and procedure for granting affiliation to associations and organizations seeking affiliation with the Council and presenting them before the Council for approval, (c) Conducting and causing to conduct management programs related to youth development, mobilization, and youth empowerment, subject to the policies and guidelines approved by the Council, (d) Conducting and causing to conduct campaign-oriented activities to mobilize youth into the mainstream of development, (e) Conducting and causing to conduct programs related to self-employment promotion and entrepreneurship enhancement for youth, (f) Mobilizing and causing to mobilize youth as volunteers in the field of development, construction, and social service, (g) Conducting and causing to conduct awareness programs to integrate youth into national development, (h) Conducting and causing to conduct studies and research on matters related to youth development and youth mobilization, (i) Conducting and causing to conduct programs that help youth become self-reliant, (j) Taking initiative to involve youth from policy-making to implementation level, (k) Preparing and implementing an internal control system to make the work performed by the Council cost-effective and efficient and to make the financial accountability system reliable, (l) Coordinating programs run by various bodies related to youth, (m) Managing information related to youth and preparing integrated statistics, (n) Enhancing and causing to enhance the capacity of associations and organizations related to youth, (o) Performing and causing to perform other functions as prescribed. Chapter-5 District Youth Committee 11.

Constitution of District Youth Committee: (1) There shall be one District Youth Committee in each district for, inter alia, the work of conducting youth-related plans and programs at the district level. (2) The District Youth Committee shall be constituted as follows:- (a) Person nominated by the Council from among individuals who have passed at least proficiency certificate level or equivalent from a university recognized by the Government of Nepal and have worked for at least five years in the field of youth protection, promotion, or youth development and mobilization at the local level, making special contributions - Chairperson (b) Chief of the Women and Children Office - Member As amended by the Some Nepal Acts Amendment Act, 2072.(c) Representative of the District Coordination Committee - Member (d) Officer-level representative of the District Education Office - Member (e) One representative from among local associations and organizations related to youth affiliated with the Council - Member (f) Three nominated persons from among youth who have made special contributions to the protection and promotion of youth rights and interests or the field of social service - Member (g) Chief of the District Youth Committee Office - Member-Secretary (3) The members pursuant to clauses (e) and (f) of sub-section (2) shall be nominated by the Council based on the principle of inclusivity, and while making such nomination, at least fifty percent representation of women shall be ensured. (4) The

term of office of the Chairperson and nominated members of the District Youth Committee shall be four years. (5) Notwithstanding anything contained in sub-section (4), if the Chairperson or any nominated member of the District Youth Committee is found to have behaved inconsistently with their position or failed to fulfill their responsibilities, the Council may remove such Chairperson or member from the post at any time. Provided that before such removal, such person shall not be deprived of the opportunity to present their defense. (6) The procedure for meetings of the District Youth Committee shall be as prescribed. (7) The office of the District Youth Committee shall be located at a place designated by the Council. 12.

Functions, Duties and Powers of District Youth Committee: The functions, duties, and powers of the District Youth Committee shall be as follows:- (a) Formulating and conducting or causing to conduct district-level plans and programs related to youth, subject to policies approved by the Council, As amended by the Some Nepal Acts Amendment Act, 2072.(b) Conducting various youth-related programs at the district level in partnership with local levels, associations and organizations related to youth, non-governmental organizations, and the private sector, (c) Coordinating and facilitating youth-related programs operating at the local level, (d) Mobilizing resources at the local level for conducting youth-related programs, (e) Conducting and causing to conduct various programs targeting youth of special communities, (f) Performing and causing to perform functions as specified by the Council. Chapter-6 Affiliation with the Council and Program Implementation 13. Granting Affiliation to Associations and Organizations related to Youth: (1) If any association or organization related to youth, registered pursuant to prevailing law with the objective of protecting the rights and interests of youth, wishes to be affiliated with the Council, it shall submit an application to the Council specifying the following details:- (a) Name of the association or organization, (b) Objective of the association or organization, (c) Current validity period of the association or organization's renewal, (d) Names and addresses of the members of the working committee of the association or organization. (2) While submitting the application pursuant to sub-section (1), the statute of the relevant association or organization shall also be attached. (3) Upon examining the documents submitted with the application received pursuant to sub-section (1) or (2), if it appears appropriate to grant affiliation to such association or organization with the Council as requested by the applicant, the Council shall, upon collecting the prescribed fee, grant affiliation to such association or organization with the Council. (4) If an association or organization related to youth affiliated with the Council pursuant to sub-section (3) wishes to maintain its affiliation status, it must renew it by paying the prescribed fee to the Council every five years. (5) An association or organization related to youth affiliated with the Council pursuant to sub-section (3) shall submit an annual report of its activities carried out throughout the year to the Council within three months of the end of the fiscal year. (6) The renewal of affiliation, cancellation of affiliation, and other related provisions for associations or organizations related to youth shall be as prescribed. 14.

Conducting Programs: An association or organization related to youth affiliated with the Council pursuant to Section 13 may, subject to its statute, conduct various programs to provide training on different knowledge and skills to unemployed youth, empower youth, and protect the rights and interests of youth from backward communities or classes. Chapter-7 Vice-Chairperson and Employees 15. Provisions Relating to Vice-Chairperson: (1) The Government of Nepal shall appoint the Vice-Chairperson to function as the Chief Executive of the Council on the recommendation of the committee pursuant to Section 20. (2) The Vice-Chairperson shall receive remuneration and facilities as specified by the Government of Nepal. (3) The term of office of the Vice-Chairperson shall be four years. (4) Notwithstanding anything contained in sub-section (3), if the Vice-Chairperson behaves inconsistently with his/her position, fails to fulfill official responsibilities, or causes loss or damage to the Council, the Government of Nepal may remove him/her from the post of Vice-Chairperson at any time. (5) Before removing the Vice-Chairperson pursuant to sub-section

(4), he/she shall be given an opportunity to present his/her defense. (6) Other terms of service of the Vice-Chairperson shall be as prescribed. 16. Functions, Duties and Powers of the Vice-Chairperson: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Vice-Chairperson shall be as follows:- (a) Implementing and causing to implement policies, plans, and programs approved by the Council, (b) Preparing the annual program, plan, and budget of the Council and presenting them before the Committee, (c) Implementing and causing to implement the decisions of the Council and the Committee, (d) Monitoring and causing to monitor plans and programs operated by the Council, (e) Managing staff and performing other managerial tasks of the Council, (f) Performing other functions as prescribed. 17. Provisions Relating to Employees: (1) There shall be employees of the Council according to the organizational structure and staff positions as approved by the Council for its operation. (2) The appointment, remuneration, facilities, and terms of service of the Council's employees shall be as prescribed. (3) Until employees pursuant to sub-section (2) are appointed, the Ministry may, upon the request of the Council, assign any employee of the Government of Nepal to work in the Council. Chapter-8 Council Fund 18.

Council Fund: (1) The Council shall have its own separate Fund. (2) The Fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received as grants from any person, association, or organization, (c) Amounts received from foreign governments, international associations, organizations, or individuals, (d) Amounts received while granting or renewing affiliation to associations or organizations related to youth, (e) Amounts received from any other sources. (3) Before receiving amounts pursuant to clause (c) of sub-section (2), the Council must obtain approval from the Ministry of Finance, Government of Nepal. (4) All expenses incurred in the name of the Council shall be borne from the Fund pursuant to sub-section (1). (5) All amounts in the Council Fund shall be deposited by opening an account in any commercial bank designated by the Council. (6) Operation of the Council Fund shall be as prescribed. 19. Accounts and Audit: (1) The Council shall keep accounts of its income and expenditure in accordance with the accounting system adopted by the Government of Nepal. (2) Internal audit of the Council shall be carried out by an auditor appointed by the Council, and final audit shall be carried out by the Auditor General. (3) The Ministry may inspect or cause to inspect the accounts of the Council's income and expenditure, related documents, and other cash and store items at any time. Chapter-9 Miscellaneous 20. Recommendation Committee: (1) The Government of Nepal shall constitute a three-member Recommendation Committee comprising two other experts chaired by the Secretary of the Ministry to recommend names for the appointment to the post of Vice-Chairperson. (2) The Committee pursuant to sub-section (1) shall recommend for appointment to the post of Vice-Chairperson from among distinguished individuals who have passed at least bachelor's level from a university recognized by the Government of Nepal and have worked for at least seven years in the field of youth rights and interests protection, promotion, or youth development and mobilization. (3) The meeting of the Recommendation Committee pursuant to sub-section (1) and other procedures to be adopted while making recommendations shall be as determined by that Committee itself. 21. Not to Participate: No member or office bearer of the Council, Committee, or District Youth Committee shall take any contract from the Council or participate in any matter in which they have a personal interest. 22.

May Form Sub-committee or Task Force: (1) The Committee may form a sub-committee or task force as required to perform any of its functions under this Act or the rules made under this Act. (2) The functions, duties, and powers, as well as the procedure of the sub-committee or task force formed pursuant to sub-section (1), shall be as specified by the Committee at the time of forming such sub-committee or task force. 23. Remuneration, Facilities, and Meeting Allowance: (1) The facilities receivable by the Chairperson of

the District Committee shall be as prescribed. (2) The Chairperson, Vice-Chairperson, and Members of the Council, the Chairperson and Members of the District Committee, and members of the sub-committee or task force pursuant to Section 22 shall receive a meeting allowance as prescribed for participating in meetings.

24. Annual Report: (1) The District Youth Committee shall submit its annual report of the activities carried out throughout the year to the Council within two months of the end of the fiscal year. (2) The Council shall submit its annual report of the activities carried out throughout the year to the Government of Nepal through the Ministry within three months of the end of the fiscal year. (3) The report pursuant to sub-section (2) shall include, in addition to other matters, details of the activities performed by the Council and District Youth Committees throughout the year and their achievements, expenses incurred for such activities, the status of the Council Fund and resources, other actions taken by the Council, and problems identified in the youth sector along with measures for their solution. (4) The Council shall publish the details of the resources received by it, activities performed, their achievements, and other actions taken for the information of the general public every year.

25. May Give Directives: (1) The Government of Nepal may give necessary directives to the Council on matters relating to its work, activities, and improvement. (2) It shall be the duty of the Council to comply with directives given pursuant to sub-section (1).

26.

Delegation of Powers: (1) The Council may delegate some of the powers conferred upon it under this Act or the rules made under this Act to the Committee, Chairperson, or Vice-Chairperson as required. (2) The Committee may delegate some of the powers conferred upon it under this Act or the rules made under this Act to the Chairperson of the Committee, any member, the Member-Secretary, or any official employee of the Council as required.

27. Oath: Members other than ex-officio members of the Council, Committee, and District Youth Committee shall take an oath as prescribed before assuming their responsibilities.

28. Duty to Provide Assistance: It shall be the duty of all concerned to provide necessary assistance in relation to the work and activities of the Council, Committee, and District Youth Committee.

29. Dissolution of the Council: (1) If the Council fails to function in accordance with the objectives of this Act, the Government of Nepal may dissolve the Council at any time. (2) If the Council is dissolved pursuant to sub-section (1), the movable and immovable property of the Council shall vest in the Government of Nepal.

30. Contact with Government of Nepal: The Council shall maintain contact with the Government of Nepal through the Ministry.

31. Power to Make Rules: The Government of Nepal may make necessary Rules for the implementation of this Act.

32. Power to Make Regulations: (1) Subject to this Act or the rules made under this Act, the Council may make necessary Regulations. (2) While making Regulations on matters involving financial expenditure pursuant to sub-section (1), the Council must obtain the approval of the Ministry.